

## 26LBCV00419 26LBCV00419

County: los-angeles

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### BACKGROUND

On February 18, 2026, Plaintiff Roger Nahun Rivera Claros, an incompetent person, by and through Iris Odalis Claros, his Guardian Ad Litem ("Plaintiff") filed a complaint against Defendants Grand Prix Association of Long Beach, Penske Entertainment Corp. and Penske Corporation ("Defendants"), as well as City of Long Beach, County of Los Angeles, and Janet Sue Pottebaum. This action arises from a collision on April 21, 2025, where Plaintiff was catastrophically injured. Plaintiff alleges that the collision occurred eight (8) days after the conclusion of the 2025 Acura Grand Prix and seven days past the City of Long Beach's publicly stated deadline of April 14, 2025, for restoring normal traffic flow at that intersection. Plaintiff alleges that this Grand Prix infrastructure contributed to the collision, and that, in order to reduce costs, Defendants left it up despite knowledge of the risk.

On May 6, 2026, Defendants filed the instant motion to strike punitive damages.

On June 3, 2026, Plaintiff filed an opposition.

On June 9, 2026, Defendants filed a reply.

### DISCUSSION

Applicable

Law

The proper procedure to attack false

allegations in a pleading is a motion to strike. (Code Civ. Proc. §436(a).) In granting a motion to strike made under Code Civ. Proc. §435, “[t]he court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of complaint], or at any time in its discretion, and upon terms it deems proper: [¶] (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc. §436,(a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (Code Civ. Proc. §431.10.) The court may also “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. §436(b).)

## Analysis

### A. Meet and Confer

The

Court has reviewed the meet and confer discourse between the parties, and finds that further meet and conferral would be futile, and thus the motion is ripe for adjudication.

### B. Striking Punitive Damages

To

succeed on a motion to strike punitive damages allegations, it must be said as a matter of law that the alleged behavior was not so vile, base, or contemptible that it would not be looked down upon and despised by ordinary decent people. (Angie M. v. Superior Court (1995) 37 Cal. App. 4th 1217, 1228-1229.) “Under the statute, malice does not require actual intent to harm. Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences. Malice may be proved either expressly through direct evidence or by implication through indirect evidence from which the jury draws inferences.” (Pfeifer v. John Crane, Inc. (2013) 220 Cal. App. 4th 1270, 1299 (internal quotations omitted).)

Defendants argue that allegations regarding punitive damages must be struck as Plaintiff fails to establish, by clear and convincing evidence, malicious conduct by Defendants. (Mot., p. 3.) Defendants contend that the allegations that they acted maliciously, intentionally or with conscious disregard for the health and safety of Plaintiff rest squarely on bald legal conclusion, without any of the factual substantiation necessary to support claims for punitive damages. (Ibid.) Specifically, for corporate punitive liability, Defendants argue that the complaint must plead that an officer, director, or managing agent authorized or ratified the wrongful conduct or was personally guilty of malice, but fails to do so. (Civ. Code § 3294(b).)

In opposition, Plaintiff argues that Defendants misapply the “clear and convincing evidence” standard used at trial and summary judgment, rather than the liberal motion to strike and demurrer standard: all well pleaded factual allegations are accepted as true and the pleading is construed in the light most favorable to the plaintiff. (Opp., p. 6.)

Plaintiff further argues that the Complaint adequately alleges a formalized, affirmative corporate policy of deliberate indifference to human life, pursued with knowledge of its lethal consequences. (Opp., p. 7.) Specifically, Plaintiff contends that the Complaint is not conclusory as it alleges the following: (1) a decade-long corporate strategy of intentionally underfunding post-event infrastructure removal to save costs (Compl., ¶¶ 61–65, 128–131); (2) GPALB's CEO publicly admitted to the Long Beach City Council in 2021 that his corporation deliberately left 4,000-pound concrete barriers on public roadways to save \$89,000 (¶ 62); (3) Defendants had actual, documented knowledge of prior collisions, serious injuries, and fatalities resulting from this exact practice (¶¶ 49–68, 130); (4) despite all of this knowledge, Defendants not only failed to promptly remove the infrastructure but failed to deploy even a single warning sign, flagger, or flashing beacon costing as little as \$150–\$500 (¶¶ 129, 132–134); and (5) this decision was made and ratified by named officers and executives acting within the scope of their authority (¶¶ 135–139).

Both parties rely on *College Hospital Inc. v. Superior Court* (1994) 8 Cal. 4th 704 (*College Hospital*) in arguing for and against the applicability of punitive damages against Defendants on the facts stated in the Complaint. Per *College Hospital*, the availability of punitive damages against corporate entities like Defendants must be based on either (1) the wrongful act being

committed by an officer/managing agent, (2) advanced knowledge of the employee's unfitness by an officer/managing agent, (3) an officer/managing agent authorized the wrongful act, or (4) an officer/managing agent ratified the wrongful act.

#### Plaintiffs

contend that the grounds for punitive damages in this action derive from allegations that (1) Defendants had documented knowledge of prior collisions, serious injuries, and fatalities resulting from this exact practice, (2) despite this knowledge, Defendants failed to promptly remove the infrastructure or deploy a warning sign, flagger, or flashing beacon, and (3) this decision was made and ratified by named officers and executives acting within the scope of their authority. (Opp., p. 7.)

Here, the Court finds that the Complaint adequately alleges facts supporting an inference that Defendants' failure to remove grand prix infrastructure or put up warning signs despite prior knowledge of their danger constituted an independent wrongful act upon which Defendants may be held liable for punitive damages. The Complaint establishes a logical causal chain linking Defendants' failure to remove grand prix infrastructure or put up warning signs as a cost saving measure, to injuries suffered by Plaintiff.

#### As

to the alternative basis for punitive damages advanced by Plaintiff, that of ratification, the Court again turns to College Hospital, which provides that "an employer's liability for punitive damages, ratification generally occurs where, under the particular circumstances, the employer demonstrates an intent to adopt or approve oppressive, fraudulent, or malicious behavior by an employee in the performance of his job duties", or stated differently, "[c]orporate ratification in the punitive damages context requires actual knowledge of the conduct and its outrageous nature." (College Hospital, *supra*, 8 Cal. 4th at 726.)

#### The

Complaint adequately alleges that Defendants had actual knowledge of prior collisions, serious injuries, and fatalities resulting from this exact practice and demonstrated an intent to adopt or approve of the wrongful conduct by continuing the conduct in an effort to save costs (GPALB's CEO publicly admitted to the Long Beach City Council in 2021 that his corporation deliberately left 4,000-pound concrete barriers on public roadways

to save \$89,000 (¶ 62).) The Complaint illustrates that this is not a negligence case with punitive damages merely tacked on as Plaintiff alleges a continued dangerous practice and Defendants' conscious refusal to act with knowledge that this exact type of collision could occur. It cannot be said as a matter of law that the alleged behavior was not "so vile, base, or contemptible that it would not be looked down upon and despised by ordinary decent people" as required to strike punitive damages. (Angie M., supra, 37 Cal.App.4th at pp. 1228-1229.) Thus, punitive damages should not be struck as the allegations support such a remedy.

#### CONCLUSION

Defendants' Motion to Strike is  
DENIED.

Moving party to give notice.